

FULL FAITH LAW FIRM

Advocates & Legal Consultants
New Delhi | Mumbai | Jaipur

HUMAN RESOURCES POLICY MANUAL

Version 1.0 | Effective Date: 1 June 2025

Prepared by:	Human Resources Department
Approved by:	Managing Partner
Review Cycle:	Annual (every 1 June)
Applicability:	All employees, associates, and interns of the firm
Governing Law:	The laws of India, including the Advocates Act, 1961

1. INTRODUCTION & SCOPE

1.1 Purpose

This Human Resources Policy Manual ("Manual") sets out the policies, procedures, and standards governing the employment relationship between Sharma & Associates LLP ("the Firm") and its employees. It aims to foster a professional, equitable, and high-performance workplace consistent with the ethical obligations of the legal profession in India.

1.2 Applicability

This Manual applies to:

- All full-time and part-time advocates and legal associates
- Non-legal support staff (paralegal, secretarial, administrative, IT, accounts)
- Interns and trainees engaged under formal agreements
- Consultants and Of Counsel to the extent specified in individual agreements

1.3 Governing Framework

The Firm's HR practices are governed by, among others:

- The Advocates Act, 1961 and Bar Council of India Rules
- The Industrial Disputes Act, 1947 and Industrial Employment (Standing Orders) Act, 1946
- The Shops and Establishments Act(s) of the respective state(s)
- The Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013 (POSH Act)

- The Maternity Benefit Act, 1961 (as amended by the 2017 Amendment)
- The Payment of Gratuity Act, 1972
- The Payment of Bonus Act, 1965
- The Employees' Provident Funds and Miscellaneous Provisions Act, 1952
- The Employees' State Insurance Act, 1948
- The Code on Wages, 2019 (to the extent notified)

2. RECRUITMENT & SELECTION

2.1 Equal Opportunity

The Firm is an equal opportunity employer. Recruitment decisions are based solely on merit, qualifications, and the requirements of the position. The Firm does not discriminate on the basis of gender, religion, caste, disability, age, or any other characteristic protected by applicable law.

2.2 Hiring Process

Standard stages in the recruitment process include:

- Posting of vacancy (internal notice board, firm website, professional platforms)
- Receipt and screening of applications by HR
- Technical and competency-based interviews (minimum two rounds for legal roles)
- Reference and background verification (mandatory prior to offer)
- Issuance of Offer Letter and Letter of Appointment

2.3 Documents Required at Joining

- Educational certificates (LLB / LLM / postgraduate degrees)
- Bar Council Enrolment Certificate (for advocates)
- PAN card and Aadhaar card
- Previous employment relieving letter and experience certificates
- Recent passport-size photographs (4 nos.)
- Bank account details (for salary credit)
- Medical fitness certificate from a registered medical practitioner

2.4 Probation Period

All new employees (except interns) are subject to a probationary period of six (6) months from the date of joining. The probation may be extended by up to three (3) months at the Firm's discretion. Confirmation of employment is communicated in writing. During probation, notice from either party is two (2) weeks.

3. WORKING HOURS, ATTENDANCE & LEAVE

3.1 Standard Working Hours

Standard office hours are Monday to Saturday, 9:30 AM to 6:30 PM (IST), with a 30-minute lunch break. Employees in client-facing or court-attending roles may follow adjusted timings as agreed with their supervising partner. Overtime is not generally compensated in cash but may be recognised through compensatory off as approved by the HR Manager.

3.2 Attendance

Employees must mark attendance using the biometric / HRMS system at the start and end of each working day. Habitual late arrivals (more than three instances in a month) will be recorded and may attract disciplinary action. Absenteeism without prior approval or intimation within two (2) hours of start of shift will be treated as leave without pay (LWP).

3.3 Leave Entitlements

Leave Type	Days per Year	Key Conditions
Earned / Privilege Leave (PL)	15	Carried forward up to 30 days; encashment on separation
Casual Leave (CL)	10	Non-encashable; lapses at year-end; max 3 consecutive days
Sick / Medical Leave (SL)	10	Medical certificate required for > 2 consecutive days
Maternity Leave	26 weeks	Per Maternity Benefit Act, 1961 (as amended)
Paternity Leave	5 days	Within 3 months of childbirth / adoption
Bereavement Leave	3 days	Immediate family; extensible at partner discretion
Public Holidays	Approx. 12	As per annual holiday calendar issued each January

4. COMPENSATION & BENEFITS

4.1 Salary Structure

Compensation is structured as a fixed Cost to Company (CTC) comprising:

- Basic Salary (40–50% of CTC)
- House Rent Allowance (HRA) – 50% of Basic for metro cities, 40% for non-metro
- Special Allowance (balancing component)
- Employer's Provident Fund contribution (12% of Basic, subject to PF Act)

- Gratuity provision (4.81% of Basic, per Payment of Gratuity Act, 1972)

4.2 Salary Disbursement

Salaries are credited on the last working day of each month via NEFT/IMPS to the employee's designated bank account. Salary slips are made available on the HRMS portal by the 5th of the following month.

4.3 Performance Bonus

Annual performance bonuses (if any) are discretionary and based on individual appraisal ratings, Firm profitability, and market benchmarking. Bonuses are typically disbursed in the month of October. Employees who join after 1 April of the appraisal year receive pro-rated bonuses.

4.4 Statutory Benefits

- Employees' Provident Fund (EPF) – 12% employee, 12% employer contribution on Basic + DA
- Employees' State Insurance (ESIC) – applicable for employees with gross wages up to Rs. 21,000 per month
- Professional Tax – as applicable in the respective state
- Group Medical Insurance – coverage of Rs. 3,00,000 per annum (employee + spouse + two dependent children)
- Personal Accident Insurance – coverage of Rs. 10,00,000 per annum

5. PERFORMANCE MANAGEMENT

5.1 Appraisal Cycle

The Firm follows an annual performance appraisal cycle (April to March). Mid-year reviews are conducted in October to provide interim feedback.

5.2 Appraisal Process

- Self-assessment by employee (HRMS portal) – by 15 April
- Review by immediate supervisor and reporting partner – by 30 April
- Calibration discussion among partners – by 15 May
- Communication of rating and increment letter – by 31 May

5.3 Rating Scale

Performance ratings are on a five-point scale: Outstanding (5), Exceeds Expectations (4), Meets Expectations (3), Needs Improvement (2), Unsatisfactory (1). Ratings of 1 or 2 trigger a Performance Improvement Plan (PIP) of 90 days.

6. CODE OF CONDUCT & PROFESSIONAL ETHICS

6.1 Professional Standards

All employees must uphold the ethical standards required of legal professionals in India and shall not engage in conduct that could bring the Firm into disrepute. Advocates are additionally bound by the Bar Council of India Rules on professional conduct and etiquette.

6.2 Confidentiality & Attorney-Client Privilege

Employees must maintain strict confidentiality with respect to all client information, case strategies, and internal Firm matters. This obligation continues beyond the termination of employment without limit of time. Any breach of confidentiality shall be treated as gross misconduct and may result in immediate termination and legal action.

6.3 Conflict of Interest

Employees must disclose any actual or potential conflicts of interest to the Managing Partner at the earliest opportunity. Undisclosed conflicts that come to light may constitute misconduct. Employees may not accept gifts, entertainment, or benefits from clients or third parties with a value exceeding Rs. 1,000 without prior written approval.

6.4 Social Media Policy

Employees must not post, share, or comment on matters related to client engagements, pending litigation, internal Firm affairs, or colleagues on any social media platform. The Firm's name or logo may not be used in personal social media profiles without written authorisation from the Managing Partner.

7. PREVENTION OF SEXUAL HARASSMENT (POSH)

The Firm is fully committed to providing a workplace free from sexual harassment as mandated by the Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013.

7.1 Internal Committee (IC)

The Firm has constituted an Internal Committee (IC) as required under the POSH Act. The IC comprises a Presiding Officer (senior woman employee), two employee members, and one external member from an NGO or legal field. Contact details of the IC are displayed at all office locations and on the HRMS portal.

7.2 Complaint Mechanism

Any employee (including interns and temporary staff) who experiences sexual harassment may submit a written complaint to the IC within three (3) months of the incident. The IC will conduct an inquiry within 90 days of receipt of the complaint. Strict confidentiality is maintained throughout the process.

7.3 Prohibition of Retaliation

Retaliation against any person who files a complaint or cooperates with an IC inquiry is strictly prohibited and itself constitutes misconduct.

7.4 Annual Training

Mandatory POSH awareness training is conducted for all employees at least once per year. Attendance is compulsory and non-attendance may attract disciplinary action.

8. DISCIPLINARY PROCEDURE

8.1 Acts of Misconduct

The following, without limitation, constitute misconduct:

- Breach of confidentiality or attorney-client privilege
- Falsification of timesheets, bills, expense claims, or records
- Theft, fraud, or dishonesty
- Insubordination or wilful refusal to follow lawful instructions
- Consumption or possession of alcohol or illegal substances on the premises
- Harassment, bullying, or discrimination of any kind
- Unauthorised disclosure of the Firm's confidential or proprietary information
- Repeated unexplained absence or abandonment of work

8.2 Disciplinary Process

Except in cases of summary dismissal for gross misconduct, disciplinary action shall follow the principles of natural justice:

- Issuance of a written show-cause notice stating the allegation
- Employee's written response within five (5) working days

- Inquiry by a designated officer (if warranted)
- Decision communicated in writing with reasons
- Right of appeal to the Managing Partner within seven (7) working days

8.3 Penalties

Penalties range from written warning, withholding of increment, demotion, suspension without pay, to termination of employment, depending on the severity and repetition of the misconduct.

9. SEPARATION & FULL & FINAL SETTLEMENT

9.1 Resignation

An employee wishing to resign must submit a written resignation to their reporting partner with a copy to HR. Notice periods are:

- During probation: two (2) weeks
- Confirmed employees (non-partner): one (1) month
- Senior Associates / Counsel: two (2) months

The Firm may, at its discretion, waive the notice period or buy out the notice at last drawn basic salary.

9.2 Full & Final Settlement

Full and Final (F&F) settlement shall be processed within thirty (30) days of the last working day and shall include:

- Salary for days worked in the last month
- Encashment of unused Privilege Leave (up to applicable limit)
- Gratuity (if service $\geq$ 5 years, per Payment of Gratuity Act, 1972)
- Reimbursement of pending expense claims
- Recovery of any outstanding advances or loans

9.3 Exit Formalities

On or before the last working day, the departing employee must: return all Firm property (laptop, access cards, files, client documents), settle all outstanding dues, hand over work in progress to the designated successor, and execute a Confidentiality and Non-Solicitation undertaking.

10. GRIEVANCE REDRESSAL

Any employee who has a grievance relating to employment conditions, conduct of a colleague, or any other work-related matter (other than matters covered by the POSH Act) may raise it through the following escalation path:

- Step 1: Discussion with immediate supervisor (within 5 working days of incident)
- Step 2: Written complaint to HR Manager (if unresolved within 5 days of Step 1)
- Step 3: Escalation to Managing Partner (if unresolved within 10 days of Step 2)

All grievances will be acknowledged within 48 hours and resolved within 30 calendar days to the extent practicable. Victimisation or retaliation against a grievance-raiser is prohibited.

11. ACKNOWLEDGMENT

I, the undersigned, acknowledge that I have received, read, and understood the Sharma & Associates LLP Human Resources Policy Manual (Version 1.0). I agree to abide by the policies and procedures contained herein.

Employee Signature:

HR Representative:

Name: _____

Name: _____

Designation: _____

Designation: _____

Date: _____

Date: _____

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